



United States Department of the Interior

INTERIOR BUSINESS CENTER
Washington, DC 20240

Notice of Intent to Sole Source

Agency Contact Information:

U.S. Department of the Interior (DOI), Interior Business Center (IBC), Acquisition Services Directorate (AQD), 381 Elden Street, Suite 2000A, Herndon, VA 20170:

Contracting Officer: Morgan Schickler, morgan_schickler@ibc.doi.gov

Contract Specialist: Ann Woodall, ann_woodall@ibc.doi.gov

Proposed Action:

The Government intends to award a sole source, firm-fixed-price (FFP) acquisition with Still LS Appraisal Services, Inc. for Land Appraisal Services. This non-competitive action is being issued by the Department of the Interior (DOI), Interior Business Center (IBC), Acquisition Services Directorate (AQD), on behalf of the Appraisal and Valuation Services Office (AVSO) and the Bureau of Indian Affairs (BIA).

Place of Performance:

San Bernadino County, California

Description of Requirement:

The appraisal requirement is for market valuation and appraisal report for trespass damages for Chemehuevi in San Bernadino County, California.

- **NAICS Code:** 531320 “Offices of Real Estate Appraisers”
- **PSC Code:** R411 “Support – Professional: Real Property Appraisals”

Response Information:

This action is being processed in accordance with FAR Subpart 13.106-1(b) - Only one responsible source and no other supplies or services will satisfy agency requirements. Interested parties may identify their interest and capabilities regarding this requirement by submitting a capabilities statement by the date specified herein.

Interested Indian-owned Small Business Economic Enterprises (ISBEE) and Indian-owned Economic Enterprises (IEE) are encouraged to reply.

A period of performance of 177-days is anticipated for this effort. The Government will consider all capabilities statements received by **12:00 P.M. Eastern Time, March 19, 2025.**

See attachment 1, Draft Statement of Work (SOW), for details.

Please be advised that it is the offeror's responsibility to ensure the Government receives your submission on or before the specified due date. Submissions shall be sent electronically to Morgan Schickler, Contracting Officer at morgan_schickler@ibc.doi.gov and Ann T. Woodall, Contract Specialist at ann_woodall@ibc.doi.gov. Submissions shall not exceed five (5) pages. Paper copies will not be accepted. Late responses will only be accepted if they contain extraordinary value to the Government. Submissions should be in a Microsoft Office compatible format (i.e., Microsoft Word, PowerPoint, Excel, etc.) or Adobe Acrobat and not contain text smaller than 11-point font. The maximum file size of the submission shall not exceed 8 MB. Tables, graphs, etc. will count against the total page count. Font size smaller than 11 may be used to label tables and graphs but may not be smaller than 8-point font. All data received in response to this Special Notice that are marked or designated as corporate or proprietary information will be fully protected from release outside the Evaluation Panel. Proprietary information and trade secrets, if any, must be clearly marked on all materials. All information received that is marked Proprietary will be handled accordingly. Please be advised that all submissions become Government property and will not be returned. All Government and contractor personnel reviewing responses will have signed non-disclosure agreements and understand their responsibility for proper use and protection from unauthorized disclosure of proprietary information as described in 41 USC 423. The Government shall not be held liable for any damages incurred if proprietary information is not properly identified. Responders are advised that the Government will not reimburse for any information or administrative costs incurred in response to this Special Notice; all costs associated with responding to this Special Notice will be solely at the interested parties' expense.

This is NOT a request for competitive quotes. A determination by the Government not to compete this proposed action based upon responses to this announcement is solely within the discretion of the Government. Information received is solely for the purpose of determining whether to conduct a competitive acquisition. The Government reserves the right to issue a Request for Quote (RFQ) as a result of this announcement. Please be advised that this announcement may constitute the only notice that will be posted for this acquisition, based on the review of any responses to this notice. Marketing brochures and/or generic company literature will not be considered. Not addressing all the requested information may result in the Government determining the responder is not capable of performing the scope of work required.

~ END OF SPECIAL NOTICE ~



STATEMENT OF WORK

Agency Case ID 00217497

AVIS Number H51-695-2024-00001

Appraiser Instructions

[REDACTED]

[REDACTED]

3. The contracting officer will provide contact information for the property owner with the contract award.

This Statement of Work is a guide to the appraiser to help identify the appraisal problem. It is not intended to limit the scope of appraisal investigations or bias the independent judgment or value opinions of the appraiser.

The selected appraiser must independently verify all information provided in this Statement of Work for reliability and subsequent use in the appraisal.

SECTION 1 – Subject Identification & General Information

Identification

Case Name Chemehuevi [REDACTED]

Location The Chemehuevi Indian Reservation (Reservation) is located along the western bank of the Colorado River on Lake Havasu, in San Bernadino County, California. The Reservation contains 32,487 acres per the Trust Patent, with an estimated 25 to 30 miles of Colorado River frontage. The northern end of the reservation is 19 air miles southeast of Needles, California, and the southern boundary is 36 miles southeast of Needles.

The community of Havasu Lake, primarily a modular home community, is adjacent to the west side of the Reservation. It is primarily a modular home community. The Vista Del Lago development on the north side of Havasu Lake is a gated, modular home subdivision with a community center. Based on Google Earth images, it was finish-graded between 2003 and 2005. The Vista Del Lago website indicates that the lots have sewer, water and electricity. It is estimated that only approximately 40% is developed with roads at this time, and only approximately 50% of these finished lots have been sold and developed with modular homes.

The trespass area is situated in Havasu Landing Resort, which is owned and operated by the Chemehuevi Tribe of Indians (Tribe). The resort is in the central portion of the Reservation and is approximately 27 air miles southeast of Needles and 14 air miles east of U.S. Route 95.

Trespass Area Please refer to Property and Project Description below for more information about the former water line easement. The legal description of the former water line easement, created in the 1976 Settlement Agreement (Agreement), is comprised of three parcels and it is flawed. Parcel 1 can be readily plotted, but the description of Parcel 2 contains a call north to the border of the Havasu National Wildlife Refuge, which is at least three miles from the rest of the easement. The Agreement contains two hand-drawn depictions of the easement, and they show Parcel 2 being an irregular-shape parcel between Parcels 1 and 3.

██████████, AVSO review appraiser, contacted ██████████, RLS, BLM Land Surveyor for his assistance in interpreting the legal description, creating a diagram depicting it, and providing an approximate land area. He provided an exhibit for use in the appraisal by “relying heavily on the graphic depiction as shown within the Settlement Agreement to deduce a location and estimated land area for the 3 parcels described therein.” The location of the three parcels is approximate, and he wrote in his 8/27/24 email “It is by no means perfect, but without a document that shows the locations of the WR bounds as described, this is the best I could come up with. It is rational, and based on the bearings, distances, and calls described in the legal description, but does not qualify as ‘survey grade’ accuracy.” Mr. ██████████ further indicated that he would be willing to testify in court regarding his work, if needed.

The trespass is approximately 1,500 feet long. The easterly segment, legal Parcel 1, is 26 feet wide, and the westerly segment, Parcel 3, is 40 feet wide. The width of Parcel 2 is unknown, but Mr. ██████████ depiction shows it being somewhere between 26 and 40 feet wide. Mr. ██████████ estimated the area of the trespass as approximately 1.22 acres.

APN Affected Parcel(s): The trespass crosses 0649-241-07-0000 and 0649-241-09-0000.

Additional Parcel(s) Owned by Same or Related Entity: There are other additional, contiguous parcels owned by United States of American in Trust for the Chemehuevi Indian Tribe.

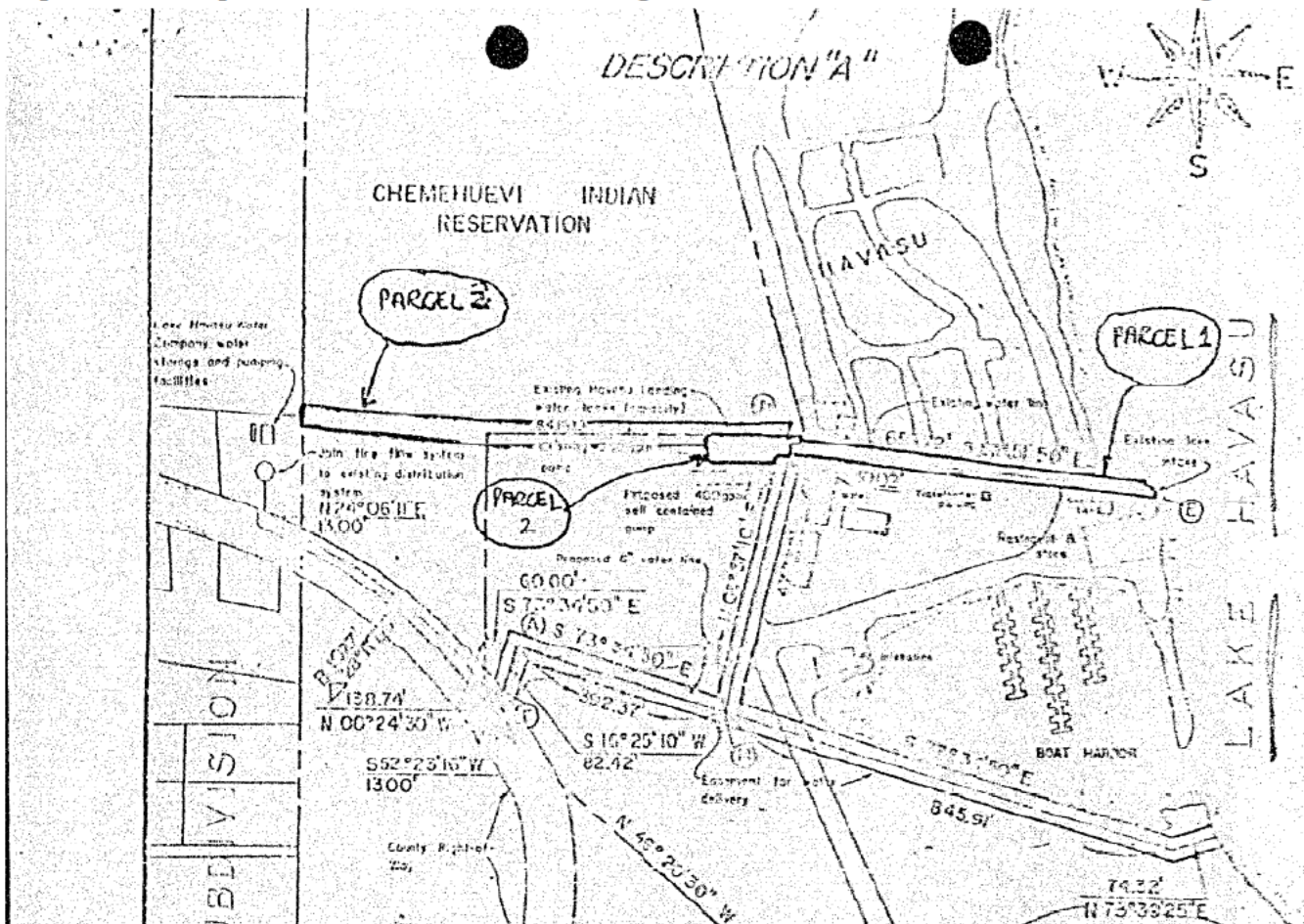
Property Type Strip of land containing a water pipeline. The easterly portion is improved with a paved roadway and possibly also with portions of modular homes. The westerly portion is vacant land.

Appraisal Type Trespass damages

Depiction of Trespass Area by Reece Henry, RLS



Depiction of Trespass Area from 1976 Settlement Agreement Recorded 695-172-88 (Exhibit A, Page 5 of 6)



Note: There is a different depiction of the water line easement shown on Exhibit E, Page 10 of 10 of the Settlement Agreement that shows Parcel 2 as a rectangular shape, which appears to be what Mr. [REDACTED] gave more emphasis to.

Client

U.S. Department of Interior, Appraisal and Valuation Services Office (AVSO).

Intended Users

Client & Bureau of Indian Affairs, [REDACTED] and [REDACTED], attorneys for the Chemehuevi Tribe.

Intended Use

The appraisal will be used to assist the intended users in the resolution of a trespass. It is not intended for any other use.

Purpose of the Appraisal

The purpose of the appraisal is to provide an opinion of the trespass damages beginning on July 4, 2006 to July 3, 2025. The amount of damages will be developed by opining the annual fair rental value of the trespass for each year. The appraiser may aggregate the annual rent values without consideration of interest or discounting.

Legal Authorities

1. Code of Federal Regulations Title 25 Indians
2. Department of the Interior, Departmental Manual Part 602 Chapter 1

Property and Project Description

The subject property is a former Havasu Water Company (HWC) water line easement across the portion of the Chemehuevi Indian Reservation known as Havasu Landing Resort. HWC still uses the water line to transport water from Lake Havasu to their treatment and distribution facility adjacent to the west boundary of the reservation.

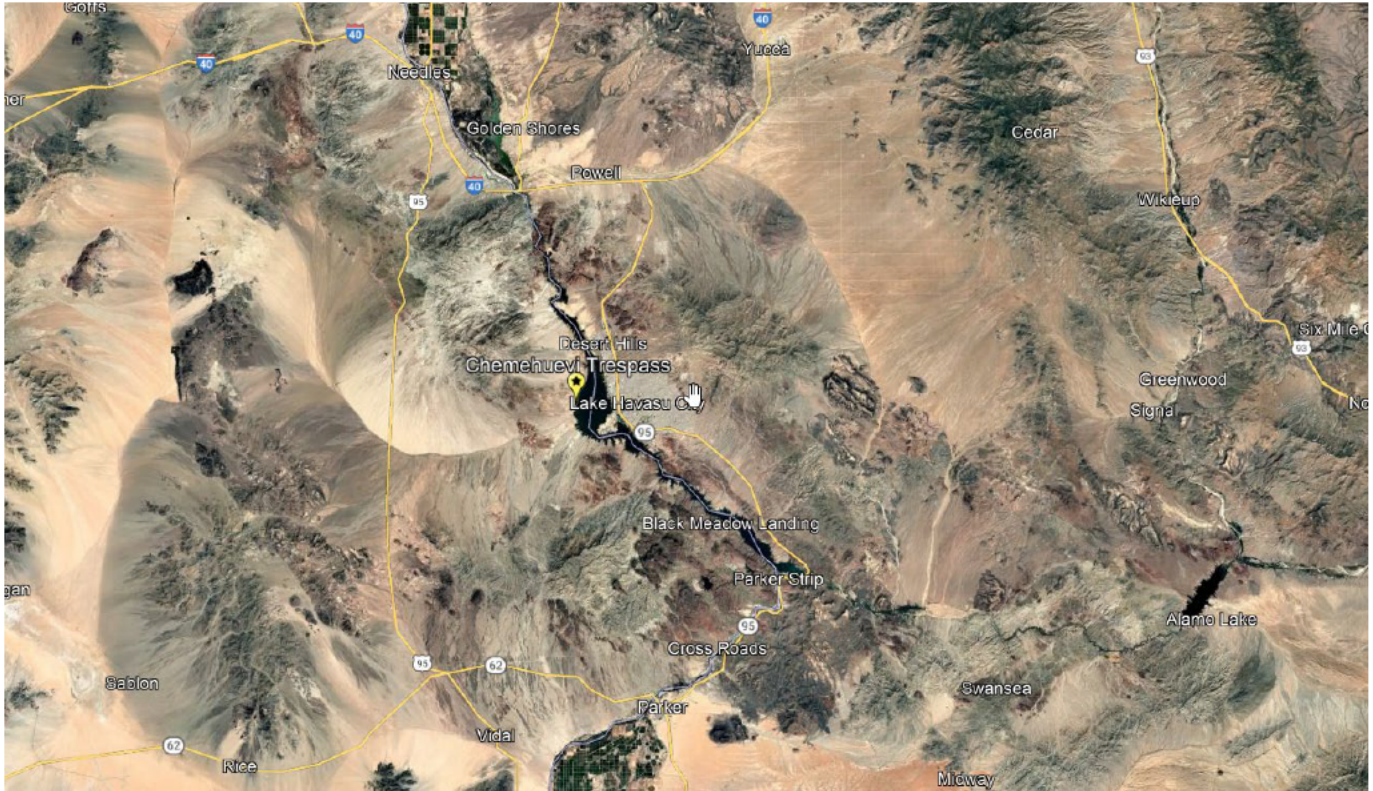
The water line easement was created by the 1976 Settlement Agreement between Havasu Water Company (HWC), the Chemehuevi Tribe of Indians, et al. The easement term was from 7/4/1976 through 7/3/2006, or 30 years. Despite ongoing negotiations that began prior to 2006, an extension of the easement term was never negotiated and HWC has been trespassing since 7/4/2026.

The Tribe filed a lawsuit against HWC on 3/9/2020. A Federal Court ruled on the defendant's motion in limine on 1/20/2023. In the Civil Minutes for this hearing, the court ruled on significant issues including: 1) how the amount of trespass damages are to be calculated, and 2) that the costs of water wheeling and alleged lost mobile home rentals cannot be considered in damages. See Legal Instructions below.

Development in Havasu Landing Resort is comprised of modular homes built in phases over time, support retail and service commercial, campground/RV park, marina, market, hardware store and casino/hotel served by a ferry across Lake Havasu to Lake Havasu City. The Tribe adopted a resolution approving a proposed modular home development called 5th Street Project. It is located between 5th Street and the west boundary of the Reservation, north of the westerly projection of 4th Street. The subdivision contains 21 acres and is planned for 88 residential lots, and Parcels 2 and 3 of the trespass are located within the southerly boundary of the subdivision.

Subject Property Location Exhibits

Exhibits identifying the subject property are presented below.

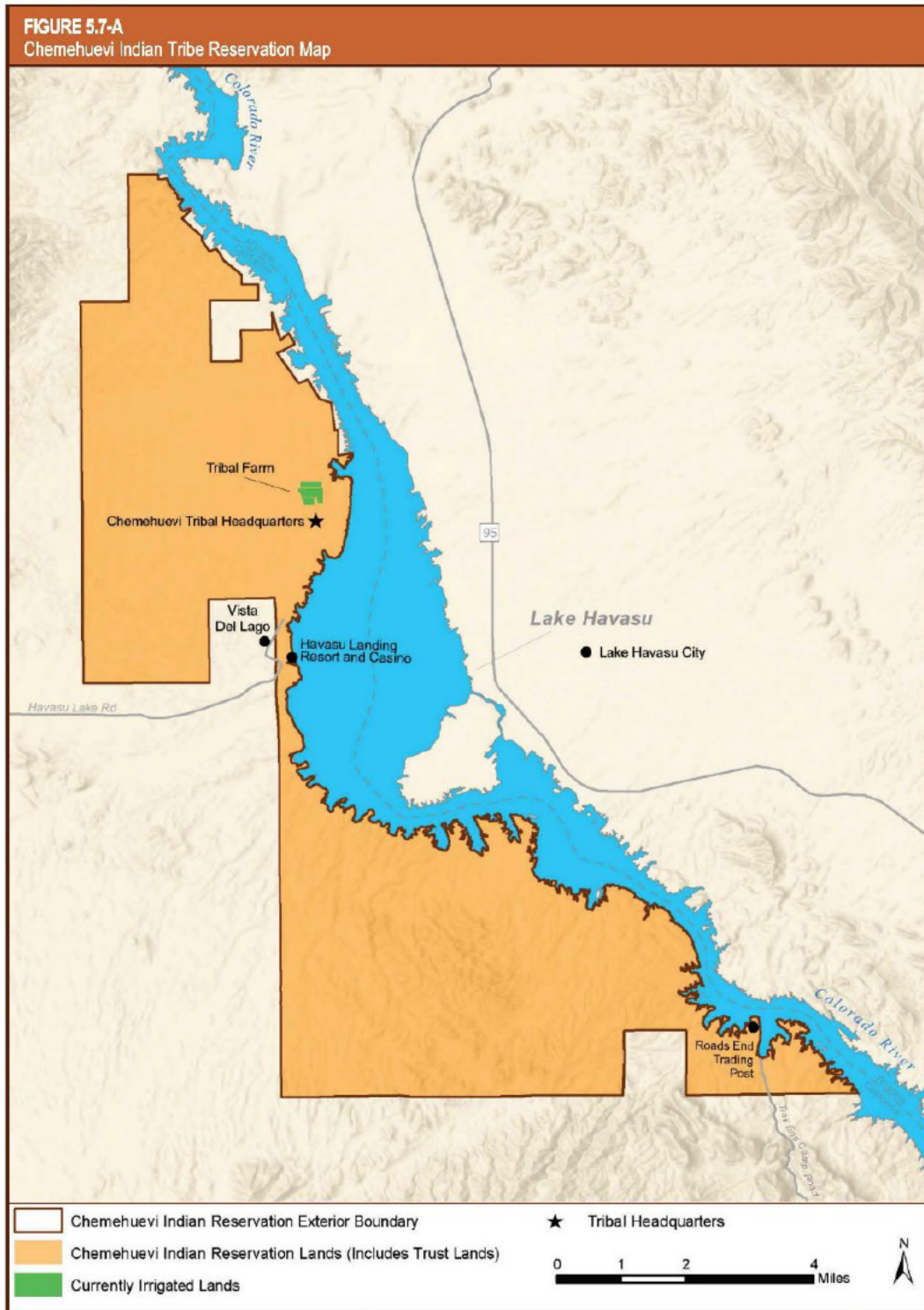




Subject Property Aerial – Looking East



Reservation Map



Source: Colorado River Basin Ten Tribes Partnership Tribal Water Study, December 2018

Legal Description

The legal description of the expired water line easement can be found in the 1976 Settlement Agreement. This description has a major flaw in Parcel 2 which has a call heading north to the boundary of the Havasu National Wildlife Refuge, at least three miles north of the rest of the easement and clearly inconsistent with the hand-drawn exhibits in the Settlement Agreement.

The legal description of the entire Reservation can be found in the Trust Patent that was recorded in 695-014-11. The portion of Tribal Tract 695 T 3 where the subject property lies contains 62.66 acres. The subject property is in Section 31, T 5 N, R 25 E. The W, W, NW portion contains 18.97 acres, and W, SW portion contains 43.69 acres. [waiting for confirmation and possible exhibit from [REDACTED], Physical Scientist, GIS]

Property Interest Appraised

In the January 20, 2023 Civil Minutes, the court ruled that the amount of trespass damages as the reasonable rental value of the portion of the property using its highest and best use. The property rights appraised, therefore, are the rental value of the fee simple estate subject to existing easements of record because the trespass has impacted the property owner's ability to develop the trespass area to its highest and best use.

Fee simple estate is defined as "absolute ownership unencumbered by any other interest or estate, subject only to the limitations imposed by the governmental powers of taxation, eminent domain, police power and escheat."¹

The appraiser must immediately notify the AVSO review appraiser of any indications of rights contrary to these described. This may result in amended instructions.

Outstanding Rights

A Title Status Report is included as an Exhibit to this SOW. The appraiser will be provided any encumbrance documents requested if they are available in the Trust Asset and Accounting Management System (TAAMS) system. The report contains a large number of encumbrances, and many may not be within the larger parcel or trespass area.

It may be difficult to determine the location of the exceptions because many are not included in TAAMS. *To the extent reasonably practical*, all the title exceptions included in the report *that affect the larger parcel or trespass area*, and any other recorded or unrecorded documents, conditions, agreements, easements and encumbrances discovered during the appraisal *that affect the larger parcel or trespass*, must be identified and discussed in the appraisal report relative to their impact on value. A simple statement that the appraiser has reviewed the noted exceptions to title and that they have no measurable effect on value is not sufficient.

The appraiser should contact the review appraiser to discuss this matter as needed during the appraisal.

Reservations

Not applicable

¹ The Dictionary of Real Estate Appraisal, Seventh Edition, Chicago, Illinois, Appraisal Institute, 2022, p. 73.

Personal Property

None. The appraisal should exclude any personal property.

Property Access

It is the appraiser's responsibility to make a determination of legal and physical access. The information below is only provided for informational purposes and has not necessarily been confirmed by the review appraiser.

Physical The Reservation has access to U.S. Route 95 via Havasu Lake Road, a two-lane, asphalt-paved, public-maintained road. The west boundary of the Reservation is approximately 16 driving miles east of Route 95. Havasu Lake Road extends into the Reservation and terminates at Mills Drive. Lake Boulevard terminates at the west boundary of the Reservation, approximately 500 feet north of the trespass area.

The roads within the Reservation are private roads. The alignment of 4th Street generally follows the location of Parcel 1 of the easement's legal description, and 5th Street extends north-south near the boundary between Parcels 1 and 2.

A ferry that is owned and operated by the Tribe also provides pedestrian access to the casino/hotel.

Legal The San Bernadino County, County Maintained Road System website indicates the County maintains Havasu Lake Road from Route 95 to the intersection of Mills Drive, including the portions within the Reservation. It also indicates the County maintains Lake Boulevard.

Larger Parcel

It is the appraiser's responsibility to make a well-supported larger parcel determination. *The appraiser shall consult with the review appraiser once the larger parcel determination has been made before proceeding with the appraisal*

Ownership/Occupant

Per the Chemehuevi Trust Patent, ownership is vested in The United States of America, in trust for the Chemehuevi Indian Tribe of California.

Proposed Acquisition

Not applicable.

Assignment Contacts

The assignment contacts will be provided to the appraiser after the contract is awarded. Any questions regarding appraisal instructions and/or technical requirements for this assignment should be addressed to the AVSO review appraiser, [REDACTED].

Provided Subject Property Exhibits

The following additional exhibits will be provided to the appraiser after the contract is awarded:

- A. Chemehuevi Trust Patent Recorded 695-014-11
- B. Title Status Report – Entire 695 T 3
- C. Encumbrance Report – Portion 695 T 3, Subject 62.66 Acres
- D. Settlement Agreement dated 6-22-76
- E. Depiction of Easement by Reece Henry, RLS
- F. Chemehuevi Zoning & Land Use Regulations
- G. Chemehuevi Subdivision Ordinance
- H. RFP for New Chemehuevi Indian Tribe Masterplan (2024)
- I. Chemehuevi Tribe Realty & Planning Website
- J. 5th Street Project Preliminary Site & Grades
- K. 5th Street Project Drainage Report
- L. 5th Street Project Engineers Estimate
- M. 5th Street Project Floor Plans
- N. 5th Street Project Geotechnical & Infiltration Report
- O. 163 – Civil Minutes
- P. Gaebler's Summary of 163 Civil Minutes Re: Damages
- Q. Grondal v. United States
- R. Complaint Filed 3-9-20
- S. First Amended Complaint Filed 7-29-20
- T. Plaintiff's Statement of Uncontroverted Facts and Conclusions of Law Filed 12-23-21
- U. AES Solar Lease Option Agreement 9-24-2024
- V. 1999 Havasu Palms Lease & 2005 Amendment
- W. Oasis at Havasu Palms Lease Agreement 11-4-2024
- X. 0649-241-07-0000 (Subject Property).kmz
- Y. 0649-241-09-0000 (Subject Property).kmz
- Z. Assignment Contacts

SECTION 2 – Appraisal Requirements & Instructions

Appraisal Standards

The appraisal must conform to the following appraisal standards:

- Uniform Standards of Professional Appraisal Practice (USPAP)

Applicable Law, Regulation, and Policy

The appraisal must conform to the following laws, regulations, and policies:

- CFR Title 25 Indians

Market Rent Definition

In the November 20, 2023 Civil Minutes, The United States District Court, Central District of California ruled that the amount of trespass damages is the reasonable rental value of the portion of the property using its highest and best use. Fair market rental will be used for this appraisal because the subject property is on Indian Land, and it is defined as follows:

Fair market rental is defined as “the amount of rental income that a leased tract of [Indian land](#) would most probably command in an open and competitive market, or as determined by competitive bidding.”²

Date of Value

The effective dates of the appraisal are July 4, 2006 through July 3, 2025.

Extraordinary Assumptions

1. It is an extraordinary assumption that the area of the former water line easement estimated by [REDACTED] is the true area.
2. It is an extraordinary assumption that the subject property is not encumbered by the Lease to the Chemehuevi Housing Department for Purpose of Subletting Land for Residential Housing for Tribal Members and Essential Government Employees, approved by BIA on 2/19/2008.
3. It is an extraordinary assumption that the subject property is not encumbered by the Lease to the Chemehuevi Indian Tribe Doing Business as the Havasu Landing Resort, approved by BIA on 2/19/2008.

If the appraiser determines that other extraordinary assumptions are necessary for the completion of the assignment, the appraiser must contact the AVSO review appraiser for prior written approval.

Hypothetical Conditions

1. It is a hypothetical condition that the subject property can be sold and purchased on the open market without any restrictions associated with Trust land status. “Trust land” means land, title to which is

² 25 CFR § 162.003

held by the United States in trust for an Indian tribe or individual, or which is held by an Indian tribe or individual subject to a restriction by the United States against alienation.³

2. It is a hypothetical condition that the subject property is subject to market conditions and marketability similar to off-reservation, non-Trust land.
3. It is a hypothetical condition that the subject property is subject to the government powers of police power, eminent domain, taxation, and escheat.
4. It is a hypothetical condition that the subject property has similar land use restrictions (general plan, zoning, etc.) and property tax load associated with surrounding private property.

If the appraiser determines other hypothetical conditions are necessary, the appraiser must contact the AVSO review appraiser for prior written approval.

Jurisdictional Exceptions

None.

Legal Instructions

The United States District Court, Central District of California Civil Minutes - General, Case No. EDCV 20-471-GW-KKx, January 20, 2023, Chemehuevi Indian Tribe v. Havasu Water Company, et al. Ruling on Defendant's Motion in Limine to Exclude Unawardable Damages [153] provides the basis for the following legal instructions:

1. The amount of trespass damages is the reasonable rental value of the portion of the property using its highest and best use. The ruling was based on *Grondal v. United States*, and that court concluded the "proper measure of damages for trespass is the fair rental value of the property, assuming that the property is being put to its highest and best use", and "The highest and best use of a property is the use that is legally permissible, physically possible, and financially feasible which results in the highest value."
2. The Tribe withdrew claims regarding the costs of water wheeling and alleged lost mobile home rentals, so introduction of such evidence is precluded from damages.

Placement in Report

The appraiser must clearly identify all Extraordinary Assumptions, Hypothetical Conditions and Jurisdictional Exceptions wherever the final value conclusion is stated, including the Letter of Transmittal and the Summary of Salient Facts. These must also be communicated with any General Assumptions and Limiting Conditions.

Property Inspection

The appraiser must perform a physical inspection of the subject property and all comparable sale properties used in the valuation analyses unless the AVSO review appraiser has approved otherwise in writing.

³ United States Code, Title 25 - Indians, Chapter 24 - Indian Land Consolidation, Section 2201, Definitions

Prior to the property inspection, the appraiser must contact [REDACTED], Accurate Professional Land Surveying and the surveyor hired by the Tribe, to stake as much of the former easement as possible. Mr. [REDACTED] is aware of the flaws in the legal description and challenges of staking the easement, and he is waiting to be contacted by the appraiser to proceed with the staking. To avoid having the stakes accidentally or intentionally removed, the appraiser should schedule as little time as possible between the easement staking and the inspection.

The appraiser must coordinate the inspection with [REDACTED], the attorney representing the Chemehuevi Tribe, [REDACTED], Supervisor, BIA Colorado River Agency, [REDACTED], [REDACTED], AVSO Regional Lead Appraiser, and the AVSO review appraiser. It is strongly advised that the [REDACTED] accompany the appraiser so he can explain what he staked and what portion(s) could not be staked, if any.

A Permission to Inspect and Appraise the property is not required for this appraisal.

If any significant items of concern are observed during the property inspection, the appraiser must contact the AVSO review appraiser before continuing with the appraisal assignment.

Pre-Appraisal Meeting

The appraiser will be required to attend a pre-appraisal meeting with the AVSO review appraiser, [REDACTED], and any other interested parties. The AVSO review appraiser will coordinate the date, time and place of the meeting. The meeting may be conducted by phone or Teams.

Controversies/Issues

There are a number of controversies and other issues, which is typical in these types of assignments. Should the appraiser identify any other controversies or issues during the assignment that were not previously discussed, the appraiser must immediately notify the AVSO review appraiser before continuing with the assignment.

Special Appraisal Instructions

1. Even though communication is encouraged with Bureau of Indian Affairs and [REDACTED], only the AVSO review appraiser can modify appraisal instructions. Any modification must be in writing.
2. The appraiser may not communicate assignment results to any party except the AVSO review appraiser until authorized to do so in writing by AVSO.
3. Any communication (verbal or written) with the Bureau of Indian Affairs or [REDACTED] must include the AVSO review appraiser.

General Appraisal Requirements & Instructions

1. The appraiser must hold a valid license as a Certified General Appraiser for the jurisdiction in which the subject property is located. Valid credentials include those obtained directly from the jurisdiction, those issued under a reciprocity agreement, and/or those characterized as "temporary" under the jurisdiction's licensing and certification statutes.
2. The appraiser must appraise the subject property in its physical and legal condition as of the effective dates of value unless authorized in writing by the AVSO review appraiser to do otherwise. The appraiser may want or need to utilize an extraordinary assumption regarding the property condition in the retrospective valuations.

3. Color photographs and maps of comparable properties must be included in the appraisal report. AVSO will accept aerial photographs for comparable properties unless the aerial photographs do not accurately represent the property as of the date of inspection or date of sale. The appraiser must photograph any unusual property features from the ground.
4. The appraisal report must be addressed to the appraiser's client, the U.S. Department of the Interior, Appraisal and Valuation Services Office (AVSO) c/o the designated review appraiser.
5. Documentation of all comparable sales, listings and other comparable market data utilized in the appraisal must be reported in detail. To the extent possible, all comparable market data must be verbally verified by the appraiser with a party directly involved in the transaction. It is understood that because of the amount of time between the earlier sale data and the present, it may not be possible to personally verify all sales. A detailed summary of each sale or rent data must, at a minimum, include the location, assessor's parcel number, seller, buyer, recording instrument, property rights conveyed, marketing time, conditions of sale, financing, sale history, verification source and phone number, name of verifier, zoning, topography, access, utilities, FEMA flood zone, improvements, intended use and pertinent comments.
6. The appraiser must research, analyze and consider any known listings and pending sales of competitive properties in the subject marketplace as they can provide important information regarding the value, supply and demand for the subject property.
7. The appraiser should not use sales to or from government agencies and/or environmental/public interest organizations in the appraisal unless there is an insufficient number of private market data to make a credible opinion of market value. It is understood that the appraisal may include sales from Arizona State Lands Department. If such sales are used, the sales must be personally verified by the appraiser with a party intimately involved in the transaction to learn how the sale price was arrived at and other transaction details.
8. The appraisal report is required to include adjustment grids/tables demonstrating either quantitative or qualitative adjustments for sales comparison analyses. If both types of adjustments are used, all quantitative adjustments must be made first. The preferred method of adjusting comparable sales is through supported quantitative adjustments (i.e., percentage or dollar). Qualitative adjustments (i.e., inferior or superior) should be used when there is insufficient market data to support the quantitative adjustment. Quantitative adjustments without support are unacceptable, and the level of support must be commensurate with the magnitude of the adjustment.

When the appraiser must resort to qualitative analyses, a discussion of the appraiser's reasoning why a comparable sale is inferior or superior to the subject property is required. All adjustments must be supported by clear, appropriate and credible analysis based on documented market research. Mere references to undisclosed trends or reliance on the appraiser's opinion or judgment without market support is an unacceptable practice.

9. The appraisal report will be reviewed for compliance with the terms of this Statement of Work (including all cited standards). Any findings of inadequacy will require clarification and/or correction.
10. The appraiser shall consider the appraisal report and all Department of the Interior internal documents furnished to the appraiser to be confidential. Refer all requests for information concerning the appraisal to the AVSO review appraiser.
11. AVSO will not normally accept custody of confidential information. Should the appraiser find it necessary to rely on confidential information, the appraiser must contact the AVSO review appraiser

for instructions prior to delivering the initial appraisal report. The review appraiser will view the information and provide further instruction to the appraiser regarding handling and storage of the confidential information.

12. If including any proprietary information in the appraisal, the appraiser must gain concurrence from AVSO review appraiser and deliver the proprietary information in a separate binder.
13. While the public is not an intended user of the appraisal report, the Freedom of Information Act (FOIA) and Agency policy may result in the release of all or part of the appraisal report to others.
14. If the appraiser has performed any services regarding the subject property within the three prior years, the appraiser must disclose this in the bid proposal.

SECTION 3 – Performance and Submission Requirements

After the contract is awarded, the appraiser must address any questions regarding appraisal instructions and/or technical requirements for the appraisal to the AVSO review appraiser.

The target period of performance for the delivery of the initial appraisal report to the AVSO review appraiser is 120 calendar days from the date of award, although 90 days is preferable. The contractor must provide the appraisal services within the performance period specified. **If the contractor determines that a performance period of 120 days for delivery of the initial appraisal report is not realistically feasible, the contractor is requested to provide an alternative delivery date for consideration with his/her proposal for the assignment.**

A summary of the required deliverables and a schedule of the delivery time frames is below.

DELIVERABLE/TASK SCHEDULE	
REQUIRED DELIVERABLES	DELIVERY DATE
Pre-Appraisal Meeting	A pre-appraisal meeting will be scheduled within 5 business days of the contract award.
Subject Property Inspection	TBD. The appraiser shall coordinate with [REDACTED], [REDACTED], [REDACTED], and the review appraiser
Consultation with Review Appraiser	The appraiser shall consult with the review appraiser once the larger parcel and highest and best use conclusions have been made.
Initial Appraisal Report	The target period for the initial appraisal report is within 120 days from contract award, <i>although 90 days is preferable</i> . The initial appraisal report transmitted to the review appraiser must be in an unlocked PDF format.
Review Period & Comments Provided to Appraiser	Review appraiser comments/requests for revisions response target period is 21 days after the initial report has been received. Any corrections/ revisions must be completed and returned to the review appraiser within 10 days or a total of 21 days in the event of multiple requests for correction or clarification. The review will be finalized within 15 days of receiving the final report.

Bureau of Indian Affairs Case 00217497	Chemehuevi [REDACTED]	AVIS H51-695-2024-00001 March 17, 2025
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Final Appraisal Report	The appraiser will provide a final electronic copy (PDF) to the review appraiser upon notification in writing that the appraisal assignment is complete. No hard copies of the final report will be required.
Invoice Submission and Payment	60 days after final appraisal report acceptance by the Government
Closeout	60 days after final payment

The final invoice/request for payment is not to be submitted until the AVSO Review Appraiser is in receipt of the final copy of the appraisal report and has notified the Appraiser that the contract is complete.

Any adjustments to the above Deliverable/Task Schedule shall be submitted to the Contracting Officer. The Contracting Officer will approve or reject the request by email.